

GORSUCH, J., dissenting

IV

With the text, principles of federalism, and history now arrayed against it, the government is left to suggest that we should retain the separate sovereigns exception under the doctrine of *stare decisis*. But if that's the real basis for today's result, let's at least acknowledge this: By all appearances, the Constitution as originally adopted and understood did *not* allow successive state and federal prosecutions for the same offense, yet the government wants this Court to tolerate the practice anyway.

Stare decisis has many virtues, but when it comes to enforcing the Constitution this Court must take (and always has taken) special care in the doctrine's application. After all, judges swear to protect and defend the Constitution, not to protect what it prohibits. And while we rightly pay heed to the considered views of those who have come before us, especially in close cases, *stare decisis* isn't supposed to be "the art of being methodically ignorant of what everyone knows."⁶⁸ Indeed, blind obedience to *stare decisis* would leave this Court still abiding grotesque errors like *Dred Scott v. Sandford*,⁶⁹ *Plessy v. Ferguson*,⁷⁰ and *Korematsu v. United States*.⁷¹ As Justice Brandeis explained, "in cases involving the Federal Constitution, where correction through legislative action is practically impossible, this Court has often overruled its earlier decisions. The Court bows to the lessons of experience and the force of better reasoning, recognizing that the process of trial and error, so

end, given that "the highest court of the same State later expressed the view that such double trials would virtually never occur in our country." *Bartkus*, 359 U. S., at 159 (Black, J., dissenting) (citing *Jett v. Commonwealth*, 59 Va. 933, 947, 959 (1867)).

⁶⁸ R. Cross & J. Harris, *Precedent in English Law*, intro. comment (4th ed. 1991) (attributing the aphorism to Jeremy Bentham).

⁶⁹ 19 How. 393 (1857).

⁷⁰ 163 U. S. 537 (1896).

⁷¹ 323 U. S. 214 (1944).